



CHAPTER xli.

An Act to authorise the closing of the church of Saint Mary Birmingham and the sale of the site and churchyard thereof and the application of the proceeds of sale for church purposes the extinction of the ecclesiastical parish of Saint Mary Birmingham and the merger thereof in another parish and for other purposes.

A.D. 1925.

[31st July 1925.]

WHEREAS by an Act passed in the twelfth year of the reign of King George the Third intituled "An Act for building two new chapels and providing burial places thereto within the Town of Birmingham in the County of Warwick" (hereinafter called "the Act of 1772") a body of trustees (hereinafter called "the trustees") was constituted for the purpose of raising money by voluntary subscription and for acquiring certain lands as the sites for two new chapels in the parish of Birmingham in the county of Warwick and by the said Act the said trustees were authorised to erect the said two chapels and to fence and lay out chapelyards and cemeteries attached thereto :

And whereas one of the said chapels was to be known and dedicated to Saint Mary and was to be erected on land given to the trustees for the purpose with other land for use as a chapelyard or cemetery by Dorothy Weaman and Mary Weaman and after consecration the advowson patronage and presentation thereto was by

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A.D. 1925. the Act of 1772 vested in the said Mary Weaman and her
— heirs And in the said Act it was provided that after con-
secration the said chapel of Saint Mary should become a
perpetual cure and that the freehold and inheritance of
the same should vest in the minister of the said chapel
and his successors except the vaults which the trustees
were authorised to construct under the said chapel And
the trustees were authorised to let the pews in the said
chapel and to apply the income arising therefrom in
manner specified in the Act of 1772 and to sell the vaults
to such person or persons who should be willing or
desirous of purchasing the same for burial places and to
apply the money arising by sale thereof for the purpose
of the said chapel as in the Act of 1772 was specified And
the trustees were further authorised to set out and open
at the sides of the said chapelyard roads and streets on
land to be provided by the said Dorothy Weaman and
Mary Weaman and were empowered to erect and provide
a house or residence for the minister of the said chapel :

And whereas the said chapel of Saint Mary was duly
erected by the trustees and was consecrated on the
twenty-fourth day of August one thousand seven hundred
and seventy-four and a parsonage or residence was
erected for the minister of the said chapel on land fronting
to Whittall Street and adjacent to the said chapel :

And whereas by an Act of Parliament passed in
the fifty-first year of the reign of King George the Third
and intituled " An Act to repeal certain parts of an Act
" of His present Majesty for building two chapels and
" providing burial grounds thereto in the town of
" Birmingham in the county of Warwick and for
" amending the said Act " (hereinafter called " the Act
of 1811 ") various provisions of the Act of 1772 relating
to pews and seats and the rents thereof were repealed
and power was given to increase the rents of such pews :

And whereas by deed dated the nineteenth day of
August one thousand eight hundred and forty-one the
Lord Bishop of Worcester assigned to the said chapel
of Saint Mary a district described in the said deed and
divided from the parish of Birmingham :

And whereas by an indenture of settlement dated
the twenty-sixth day of June one thousand seven hundred
and seventy-two and confirmed by an indenture dated
the fifth day of November one thousand seven hundred

and seventy-four the said Mary Weaman assigned and A.D. 1925.
vested the advowson and right of presentation to the
said chapel in certain trustees whose successors are the
following persons who are also the present trustees for
the purposes of the Act of 1772 viz. Sir Christopher
Robert Lighton Baronet James Hamilton Houldsworth
Joseph Wood Richards Adams :

And whereas by her will dated the twelfth day of
October one thousand seven hundred and seventy-five
the said Mary Weaman gave to the said trustees the sum
of one thousand pounds upon trust to apply and dispose
of the same or any part thereof or the interest dividends
and produce thereof or of any part thereof in paying all
costs and expenses which should from time to time be
incurred in the renewal of the trusts specified in the last
recited indentures and all other costs charges and expenses
in about or concerning the said trust and the execution
thereof and for augmenting the stipend salary or pro-
vision of or for the officiating minister or curate of the
said chapel or for all or any of the purposes aforesaid as
the said trustees should in their discretion think fit :

And whereas the said sum of one thousand pounds
was paid to the order of the then trustees on the twenty-
eighth day of January one thousand seven hundred and
ninety and invested and is now represented by one
thousand and thirty-two pounds one shilling and eight-
pence two and one-half per cent. consols standing in the
registers at the Bank of England in the names of two of
the present trustees namely the said Sir Christopher
Robert Lighton and James Hamilton Houldsworth as
survivors in a joint account with Francis Scott Webster
and James Denton Thompson :

And whereas the trustees under the powers of the
Act of 1772 duly set out on land given by the said
Dorothy Weaman and Mary Weaman to the trustees
roads and streets alongside the chapelyard of Saint Mary
one of which was known as Weaman Row which has been
adopted as a public highway repairable by the inhabitants
at large by the lord mayor aldermen and citizens of the
city of Birmingham (hereinafter called "the corpora-
tion ") as the urban sanitary authority of the said city :

And whereas by an order under the powers of the
Birmingham Cemetery Act 1846 dated the fourth day
of December one thousand eight hundred and forty-eight

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A.D. 1925. and made by the incumbent for the time being and the
— Lord Bishop of Worcester in whose diocese the chapel
then was a large portion of the said chapelyard was
closed for burials and the remainder of the said chapel-
yard was closed for burials by an Order in Council dated
the twelfth day of December one thousand eight hundred
and seventy-three and in pursuance of the Birmingham
Closed Burial Grounds Act 1878 (the provisions of which
are repealed by and largely re-enacted in the Birmingham
Corporation (Consolidation) Act 1883) by deed dated the
twenty-first day of October one thousand eight hundred
and eighty-one the incumbent demised the same to the
Corporation for the term of nine hundred and ninety-nine
years from the twenty-ninth day of September one
thousand eight hundred and eighty-one subject to the
conditions in the said deed contained and the Corporation
have accordingly laid out and maintained the portion of
the chapelyard abutting on to Loveday Street as a
recreation ground but the remainder of the chapelyard
by reason of its contiguity to the chapel and its level is
unsuitable for public enjoyment and has never been so
used :

And whereas the vaults under the said chapel are
closed and no burials have taken place in them for many
years :

And whereas by the conversion of dwelling-houses
into shops and warehouses and otherwise the resident
population of the said parish of Saint Mary has greatly
diminished and the population of other parishes in the
diocese of Birmingham has largely increased and is
insufficiently accommodated by existing churches :

And whereas it is expedient that the existing chapel
in the said parish of Saint Mary should be removed and
that the materials and the site thereof and the said
chapelyard attached thereto should be sold and that
provision should be made for a new church elsewhere
in the said diocese of Birmingham and that the said
parish should for all ecclesiastical purposes be united
with and merge in the adjacent parish known as
“ Bishop Ryder's ” :

And whereas it is expedient for the purposes afore-
said that trustees should be appointed with power to
sell the said chapel and the site thereof and of the said

chapelyard with power to sell the said parsonage house A.D. 1925.
provided under the Act of 1772 and the site and garden
held with the same and the buildings erected thereon :

And whereas the said Sir Christopher Robert Lighton
Baronet James Hamilton Houldsworth and Joseph Wood
Richards Adams as patrons of the said chapel have
consented to the provisions of this Act :

And whereas by an Order in Council of the twelfth
day of January one thousand nine hundred and five
under the powers of the Bishoprics of Southwark and
Birmingham Act 1904 the diocese of Birmingham was
constituted and the right reverend Ernest William Lord
Bishop of Birmingham in whose diocese and jurisdiction
the parish of Saint Mary is now situate has consented to
the provisions of this Act :

And whereas the Ecclesiastical Commissioners for
England have consented to the provisions of this Act :

And whereas the reverend Walter Frederick William
Hunter the present incumbent of Saint Mary's Birming-
ham has with the consent as aforesaid of the said Sir
Christopher Robert Lighton Baronet James Hamilton
Houldsworth and Joseph Wood Richards Adams as
patrons of the said chapel consented to the provisions of
this Act :

And whereas the said street or highway known as
Weaman Row is little used and is not required as a public
highway and may without inconvenience be closed and
subject to the terms of the agreement set forth in the
schedule to this Act the corporation have consented to
the provisions of this Act and to the stopping up of the
said highway and have also expressed their readiness to
surrender their interest in the portion of the said chapel-
yard to be sold by the trustees to the trustees of the
Birmingham General Hospital under the provisions of
this Act so that the said land may be used for the purpose
of extending and enlarging the said hospital :

And whereas the objects of this Act cannot be
attained without the authority of Parliament :

May it therefore please Your Majesty that it may be
enacted and be it enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords

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A.D. 1925. — Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Saint Mary's Church Birmingham and General Hospital Act 1925.

Interpretation. 2. In this Act unless the context otherwise requires—

“ The Act of 1772 ” means an Act passed in the twelfth year of the reign of King George the Third intituled “ An Act for building two new
“ chapels and providing burial places thereto
“ within the Town of Birmingham in the County
“ of Warwick ” ;

“ The old church ” means the church or chapel of Saint Mary in the city of Birmingham ;

“ The saleable estate ” means the old church and the site thereof and the vaults under the church and the portion of the chapelyard contiguous to the old church which is edged pink on the plan signed in duplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy whereof has been deposited in the Parliament Office of the House of Lords and the other in the Private Bill Office of the House of Commons and the land forming Weaman Row and which is coloured yellow on the said plan when such highway is closed and the site of the residence or vicarage house provided under the powers of the Act of 1772 in Whittall Street with the gardens and buildings belonging thereto and any other lands rights or interests belonging to the said church or the incumbent thereof or vested in the trustees of the Act of 1772 ;

“ The Bishop ” means the Lord Bishop of Birmingham for the time being ;

“ The Commissioners ” means the Ecclesiastical Commissioners for England ;

“ The trustees ” means the trustees constituted by or under this Act ;

“The corporation” means the lord mayor aldermen and citizens of the city of Birmingham; A.D. 1925.

“The appointed date” means the date fixed by the Bishop under this Act for the closing and disuse for divine service of the old church.

3.—(1) The following persons (that is to say):—

Trustees for
purposes of
Act.

The Bishop;

The Venerable Charles Ernest Hopton;

The Reverend Walter Frederick William Hunter;

Sir Christopher Robert Lighton Baronet;

James Hamilton Houldsworth;

Joseph Wood Richards Adams;

George Alexander Bryson; and

Henry Joseph Guest;

shall be trustees for the execution of the powers and duties conferred and imposed on and transferred to them by this Act and by the name and style of “the trustees of Saint Mary's Church Birmingham.”

(2) The trustees shall fill any vacancy occurring by death resignation or otherwise among the trustees other than the Bishop by the appointment of a fit lay person or person in holy orders according as the vacancy occurs among the lay trustees or among the trustees in holy orders but the trustees may at all times and notwithstanding the existence of any vacancy or vacancies in their number exercise all or any of the powers of this Act unless reduced below three in which case they shall not exercise any of the powers of this Act except that of appointing a new trustee.

(3) The trustees shall be incorporated and shall have an official seal and shall by standing order or byelaw provide for its custody and use and any deed to which the trustees are parties shall be well and sufficiently executed on behalf of the trustees if the seal be affixed thereto in the presence of two trustees testified by their signature.

4.—(1) Three trustees must be personally present to constitute a meeting of the trustees for the transaction of business. Meetings and proceedings of trustees.

(2) At their first meeting after the passing of this Act and at such time as they may determine in every

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A.D. 1925. — subsequent year the trustees shall appoint one of their number to be chairman and another to be vice-chairman for the period of twelve months from the date of the meeting or such other period as they may determine.

(3) The chairman shall preside at all meetings of the trustees at which he is present.

(4) If at any meeting of the trustees the chairman be not present the vice-chairman shall take the chair but if there be no vice-chairman or if the vice-chairman be not then present the trustees then present shall choose one of their number to take the chair at that meeting.

(5) The chairman or any three trustees may at any time summon a meeting of the trustees.

(6) Questions arising at a meeting of the trustees shall be decided by a majority of votes and in case of any equality of votes the chairman shall have a second or casting vote.

(7) Subject as aforesaid the trustees may meet together for the despatch of business adjourn and otherwise regulate the proceedings of the trustees as the trustees may from time to time think fit and may make such standing orders or byelaws as they may deem necessary for the purpose.

Office of
trustee not
to disqualify
in certain
cases.

5. No trustee appointed under this Act shall be disqualified by reason of his being such a trustee from entering into any contract or agreement with or from purchasing or acquiring any lands or property or any interest therein from the trustees or by reason of the fact that he is a trustee or member of the committee of management of the Birmingham General Hospital or a member of the corporation. Provided always that no trustee shall vote at any meeting of the trustees on any question affecting any contract agreement or purchase in which he is interested or concerned (otherwise than as a trustee under this Act or a trustee or member of the management committee of the said hospital or as a member of the corporation) and if he does so vote his vote shall not be counted.

Closing of
old church.

6. The old church shall be closed and disused for divine service at the appointed date.

7.—(1) From and after the appointed date the saleable estate and the ornaments fittings and furniture of the old church (subject as hereinafter mentioned) and any rights attached or belonging to the saleable estate shall be respectively subject to an absolute power of sale (but subject to any leases or tenancies subsisting at the time of such sale in the saleable estate or in any of the said premises) to be exercised by the trustees as in this Act provided.

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Power of
sale.

(2) From and after the appointed date the trustees shall until the sale of the saleable estate as hereinafter mentioned have (subject as in this Act provided) all such rights of entry and control over the old church and over all other things in connection therewith under the immediately preceding subsection subject to a power of sale as if they were the owners thereof.

(3) As soon as conveniently may be after the appointed date the trustees with the consent of the Commissioners shall sell the saleable estate and shall cause to be demolished the old church forming part thereof and sell the materials thereof and any other part of the saleable estate (but subject to any leases or tenancies in any part of the saleable estate then existing) and the ornaments fittings and furniture of the old church (subject as in this Act provided) either together or in such manner at such times and on such terms and conditions as they shall think fit freed and discharged from all ecclesiastical uses and subject as is by this Act provided from all other trusts uses purposes obligations disabilities and restrictions whatsoever and from all rights or interests of the owners of any vaults or of any seats or pews or of any other person and may and shall execute and do all assurances acts and things necessary or proper for effecting the purposes aforesaid.

(4) The sale of the saleable estate shall be subject to any terms and conditions relating thereto set out in this Act and shall be taken to be upon the condition that the purchaser shall within six months from the completion of the sale wholly demolish every part of the old church then existing.

(5) Every assurance of land executed by the trustees under this section shall be registered in the episcopal registry of the diocese of Birmingham and shall be

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A.D. 1925. effectual without the concurrence or consent of any other person.

Receipt of trustees.

8. Every receipt signed by the trustees or any three of them shall effectually discharge the purchaser of any land material or other property under the powers of this Act from the amount of money expressed in such receipt to have been received and from being answerable for or bound to see to the application thereof.

Confirmation of scheduled agreement.

9. The agreement dated the sixth day of April nineteen hundred and twenty-five a copy of which is set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto and on the trustees for the time being of the Birmingham General Hospital and on the trustees constituted by or under this Act and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the trustees the trustees for the time being of the Birmingham General Hospital and the corporation.

Part of site of chapel-yard demised to Corporation for use of public.

10. The right of the corporation in that portion of the chapelyard edged pink on the plan referred to in the section of this Act of which the marginal note is "Interpretation" shall be extinguished as from the date of the sale thereof under the provisions of this Act to the trustees of the Birmingham General Hospital and the remainder of the said chapelyard as shown and edged with a blue line on the said plan shall remain vested in the corporation for the purposes of Part XVII of the Birmingham Corporation (Consolidation) Act 1883 for the residue of the term of nine hundred and ninety-nine years created by the said deed of the twenty-first day of October one thousand eight hundred and eighty-one.

Stopping up of Weaman Row.

11. Subject to the terms of the agreement set forth in the schedule to this Act the trustees may stop up the highway known as Weaman Row and the rights of user over the same by the public shall be and the same are hereby extinguished and the site of the said highway shall remain vested in the trustees freed from all rights in over or under the same.

Sale of part of saleable estate to

12. Subject to the provisions of this Act the trustees shall sell to the trustees of the Birmingham General Hospital who are hereby empowered to purchase the same

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at the price of sixteen thousand pounds so much of the saleable estate as shall comprise the site of the old church the site of Weaman Row and so much of the chapelyard as is edged pink on the plan hereinbefore referred to and the said sale shall be completed and the purchase money paid on the twenty-fourth day of June one thousand nine hundred and twenty-six and the purchasers shall at their own expense demolish the old church and shall in addition pay to the trustees the whole cost of removing the human remains in the land purchased and re-interring the same in accordance with the provisions of this Act and dealing with the monuments and tombstones and shall also repay to the trustees the expenses of and incidental to the promotion applying for obtaining and passing of this Act and the legal charges in connection with the assurance of the land to the purchasers.

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—
 General
 Hospital.

13. The trustees shall remove from the old church before the appointed day and before the sale of any part thereof the font holy table and plate thereof and shall sell or dispose of the same as the Bishop may in writing direct but not otherwise. Such disposition shall be good and effectual in law. The trustees may if they think fit in lieu of selling any other ornaments fittings or furniture including stained or painted glass and pictures remove and dispose of the same in manner provided by this section as to the font holy table and plate.

Disposal of
 certain
 church orna-
 ments and
 furniture.

14. All registers deeds records books and documents belonging to or kept in the old church shall after the appointed date and before the sale of any part thereof be removed by the trustees to the church in the diocese of Birmingham commonly known as "Bishop Ryder's" and shall be securely kept with the registers and other documents of the said church. Provided that the duplicate marriage registers current at the old church at the appointed date shall be sent by the trustees to the Registrar-General to be closed officially and thereafter one of the said marriage registers shall be kept at the said church known as "Bishop Ryder's" and the other of the said marriage registers shall be deposited with the superintendent registrar of the Birmingham North Registration District.

Disposal of
 registers and
 other docu-
 ments.

15.—(1) The trustees shall before the completion of the sale to the trustees of the Birmingham General

Removal of
 human
 remains.

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A.D. 1925. Hospital of the portion of the saleable estate herein-
— before specified remove or cause to be removed the
remains of all deceased persons interred therein or in
any vault therein.

(2) Before proceeding to remove any such remains the trustees shall publish a notice for three successive days in two local newspapers circulating in the city of Birmingham to the effect that it is intended to remove any such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the saleable estate may give notice in writing to the trustees of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the Bishop to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place.

(4) If any person giving notice as aforesaid shall fail to satisfy the trustees that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Birmingham who shall have power to make an order specifying who shall remove the remains.

(5) The expenses of such removal or re-interment (not exceeding in respect of remains removed from any one vault or grave the sum of fifteen pounds) shall be defrayed by the trustees such sum to be apportioned if necessary equally according to the number of remains in the vault or grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the trustees in respect of the remains in any vault or grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the Bishop the trustees may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or

cemetery in which burials may legally take place as the trustees think suitable for the purpose subject to the consent of the Bishop. A.D. 1925.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this Act shall at the expense of the trustees be removed and re-erected at such place within the city of Birmingham as the Bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing any such application on the application of the trustees and the trustees shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city of Birmingham.

16. From and after the appointed date the office of minister or incumbent of the old church as well as every other office in connection with such church and the advowson or right of presentation or appointment thereto or to the incumbency of the said parish of Saint Mary respectively shall cease and be extinguished. Extinction of incumbency and other offices of old church.

17. As and from the appointed date the ecclesiastical district now attached or assigned to the old church shall cease to be a separate ecclesiastical district and shall for all ecclesiastical purposes be united with and merged in the parish of Bishop Ryder's in the diocese of Birmingham and shall form part of the benefice and cure of souls of that parish and from and after the appointed date all sums hitherto payable by the Commissioners to the incumbent of the old church shall be paid by them to the incumbent of the parish of Bishop Ryder's but the incumbent of the said parish of Bishop Ryder's shall be bound always to employ an assistant curate working within the said parish and apply to the payment of such assistant curate all such sums received by him from the Commissioners as were formerly paid by them to the incumbent of the old church. Merger of district of old church in adjacent parish.

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A.D. 1925.

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Application
of purchase
money.

18. All moneys received by the trustees for the sale of any land materials or other property under this Act shall be applied as follows :—

- (1) In payment of the costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act and in the payment of expenses of the sale of land materials and other property aforesaid and the expenses of the removal and re-interment of human remains under the provisions of this Act and of the removal and re-erection and custody of any monuments fittings furniture registers or other documents of the old church :
- (2) In or towards the purchase and laying out of lands in a district within the diocese of Birmingham to be approved by the Bishop as a site for and in or towards the erection and completion of a new church with all proper approaches fittings ornaments and conveniences and the consecration thereof and in or towards the purchase of a site for and the erection of a suitable rectory or residence for the minister and the conveyance of the said new church and rectory or residence to the Commissioners and in payment of all costs and expenses in connection with such matters :
- (3) In providing for an endowment of and in connection with the said new church in such manner as the trustees shall think proper to the extent of three hundred pounds a year.

Any balance of any such moneys remaining in the hands of the trustees shall be transferred by them to the Commissioners who shall apply the same in or towards any one or more of the following purposes that is to say The endowment or augmentation of the endowment of any poor benefices of any ecclesiastical parishes or districts in the diocese of Birmingham having a population of not less than six thousand or the building provision or endowment of a church or churches in the said diocese or the building or provision of houses of residence for clergy in the said diocese or the constitution and endowment of separate districts or parishes for

ecclesiastical purposes in the said diocese as the Commissioners shall from time to time with the approval of the Bishop determine.

A.D. 1925.

19. It is hereby declared and enacted that the advowson or right of presentation of or to the new church to be provided by the trustees under the last preceding section of this Act is vested in the said Sir Christopher Robert Lighton Baronet James Hamilton Houldsworth and Joseph Wood Richards Adams upon the same trusts and subject to the same provisions in all respects as the patronage to the old church is vested in them and the capital sum of one thousand and thirty-two pounds one shilling and eightpence two and one-half per cent. consols and also the income therefrom shall be held and applied by them as such patrons and trustees in accordance with the trusts hitherto affecting the same as if they had been declared for the new church. Provided that until the consecration of the new church such income may be paid to the incumbent of the parish of Bishop Ryder's to be used towards the stipend of an assistant curate.

Patronage
of new
church.

20. Subject to the provisions of this Act all the powers rights duties and liabilities vested in or exercisable by or imposed on the trustees under the Act of 1772 in respect of the old church are on and from the date of the passing of this Act hereby transferred to and vested in and shall be exercisable by the trustees and any reference in the Act of 1772 to the trustees thereunder in respect of the old church shall after the passing of this Act be deemed to refer to the trustees and all books documents or other property at the date of the passing of this Act vested in or belonging to the trustees under the Act of 1772 for the old church are hereby vested in the trustees as from that date to the same extent and for the same estate and interest as the same were previously vested in the trustees under the Act of 1772 and may be held and enjoyed sued for and recovered dealt with and disposed of by the trustees subject and according to the provisions of the Act of 1772 as amended by this Act.

Transfer of
powers of
trustees
under Act
of 1772 in
respect of
old church.

21. The persons who were the trustees under the Act of 1772 immediately before the passing of this Act shall as and from the date of the passing of this Act cease to be such trustees and shall be released from all further duties obligations and liabilities as such trustees

Dissolution of
trustees under
Act of 1772
in respect of
old church.

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A.D. 1925. in relation to the execution of the powers of the Act of
— 1772 so far as the same refer to the old church.

Saving for
acts done
under Act
of 1772.

22. Save as is by this Act otherwise expressly
provided:—

- (1) Everything before the date of the passing of
this Act done suffered and confirmed respectively
under the Act of 1772 shall be as valid as if
this Act had not been passed:
- (2) All deeds agreements or contracts entered into
or made at the date of the passing of this Act
and all obligations and liabilities incurred before
the said date by the trustees under the Act of
1772 may be enforced by or against the trustees
under the Act of 1772 as if this Act had not been
passed:
- (3) Any action suit prosecution or other proceedings
commenced before the date of the passing of
this Act by or against the trustees under the
Act of 1772 or any person representing them may
be confirmed by or against the trustees.

Repeal of Acts
of 1772 and
1811.

23. The Acts of 1772 and 1811 are hereby repealed
so far as they affect the old church.

Limits of
Act.

24. Nothing in this Act shall extend restrict or
alter the scope and application of the benefits of any
parochial charity.

The SCHEDULE referred to in the foregoing Act. A.D. 1925.

AN AGREEMENT made the sixth day of April one thousand nine hundred and twenty-five between the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF BIRMINGHAM (hereinafter called "the Corporation") of the first part and the Right Honourable ARTHUR NEVILLE CHAMBERLAIN M.P. EDMUND PHIPSON BEALE Esquire and JOHN HENRY LLOYD Esquire all of the city of Birmingham being the Trustees of the Birmingham General Hospital (hereinafter called "the Hospital Trustees") of the second part and the Right REVEREND FATHER IN GOD ERNEST WILLIAM Lord Bishop of Birmingham THE VENERABLE CHARLES ERNEST HOPTON Vicar of Moseley and Archdeacon of Birmingham THE REVEREND WALTER FREDERICK WILLIAM HUNTER Vicar of Saint Mary's Church Birmingham SIR CHRISTOPHER ROBERT LIGHTON of Donoughmore North Berwick in the County of Berwick Baronet JAMES HAMILTON HOULDSWORTH of Castle Bank in the County of Lanark Esquire JOSEPH WOOD RICHARDS ADAMS of 15 De Vere Gardens Kensington in the County of London a Lieutenant-Colonel in His Majesty's Army retired GEORGE ALEXANDER BRYSON of the City of Birmingham Merchant and HENRY JOSEPH GUEST also of the City of Birmingham Banker (hereinafter called "the Church Trustees") of the third part.

WHEREAS the Hospital Trustees are desirous of acquiring the site of St. Mary's Church and the upper part of the chapelyard and the whole of a street called Weaman Row for the purpose of extending the buildings of their hospital which said church with part of the said chapelyard is edged pink and which said street is coloured yellow on the hereunto annexed plan :

And whereas the Corporation is desirous of acquiring from the Hospital Trustees a strip of freehold land forming part of the frontage of the hospital to Steelhouse Lane and Whittall Street for the purpose of road widening which said strip of land is coloured green on the said plan :

And whereas by a deed dated the twenty-first day of October one thousand eight hundred and eighty-one and made in pursuance of the Birmingham Closed Burial Grounds Act 1878 (the

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Birmingham, and General Hospital Act, 1925.*

A.D. 1925. provisions of which were repealed by and largely re-enacted in the Birmingham Corporation (Consolidation) Act 1883) the Reverend John Stanley Owen the then present incumbent of St. Mary's aforesaid with the consent of the Bishop of the diocese demised the whole of the said chapelyard being the land edged pink and blue on the said plan but not including the site of the church unto the Corporation for the term of nine hundred and ninety-nine years from the twenty-ninth day of September one thousand eight hundred and eighty-one without consideration but subject to the conditions therein expressed and the Corporation have since laid out the lower part thereof edged blue as aforesaid as a public recreation ground :

And whereas Weaman Row aforesaid is little used and it is believed that the same could be closed without inconvenience to the public :

And whereas the population of St. Mary's parish has decreased for many years past and that of other parts of the city has enormously increased and the Hospital Trustees have agreed with the Church Trustees (of whom the said Sir Christopher Robert Lighton James Hamilton Houldsworth and Joseph Wood Richards Adams are the patrons of St. Mary's aforesaid) that it would be in the best interests of the said diocese and parish that the said church should be closed and removed and that a new church should be built elsewhere in the city and in order to carry out the objects both of the church authorities and the Hospital Trustees the church authorities and the Hospital Trustees are jointly promoting a Bill in Parliament for incorporating the parties hereto of the third part as a body of trustees with power among other things to close and acquire the whole of Weaman Row aforesaid and to sell the same together with the whole of the premises edged pink as aforesaid to the Hospital Trustees as a freehold at the price of sixteen thousand pounds for the purpose of extending the buildings of the said hospital :

Now it is hereby agreed as follows :—

1. The Corporation will give all assistance to the Church Trustees and the Hospital Trustees towards the passing of the said Bill.

2. In the event of the said Bill becoming law the Church Trustees will with all convenient speed at the costs in all respects including the costs of and incidental to the promoting of the said Bill and the carrying out of the provisions thereof if passed of the Hospital Trustees carry out the provisions thereof on their part that is to say will close Weaman Row will demolish the said church and remove and re-inter the remains of persons buried in the vaults and in that part of the chapelyard edged pink on the said plan and will sell the last mentioned land and Weaman Row to the Hospital Trustees for sixteen thousand pounds but Weaman

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Row shall not be closed until the said land has been conveyed to the Hospital Trustees and the land referred to in paragraph 4 hereof has been conveyed to the Corporation. A.D. 1925.

3. Upon the closing of Weaman Row—

(a) The Corporation shall be at liberty subject as hereinafter provided without the consent of the Hospital Trustees to enter on the site thereof and to remove the pavement and other materials thereof and any gas and water mains or pipes electric lines lamp posts lamps and other property of the Corporation therein and also to remove and appropriate the railings situate upon that part of the said chapelyard which abuts on Weaman Row Provided that notwithstanding anything hereinbefore contained the Corporation shall not remove any such gas and water mains pipes or electric lines which may be used for the purpose of supplying the hospital without the consent of the Hospital Trustees :

(b) The sewer in the said row shall cease to be a sewer vested in the Corporation and shall be a private drain belonging to the Hospital Trustees and shall be kept in repair by them but the Corporation shall be at liberty to continue to discharge therein the effluent from their sanitary convenience erected upon the lands edged blue on the said plan and from any sanitary convenience which may be provided in substitution therefor and shall have all reasonable facilities for that purpose.

4. The Hospital Trustees will convey unto the Corporation in fee simple free from incumbrances the premises coloured green as aforesaid subject to the existing tenancies thereof.

5. The Hospital Trustees will also pay the costs and expenses of the Church Trustees incurred or to be incurred in connection with the matters hereinafter referred to.

6. The Hospital Trustees will whenever required by the Corporation use their best endeavours to secure for the Corporation vacant possession of the premises coloured green as aforesaid and will for that purpose give such notices to quit to the tenants as may be reasonably required by the Corporation and will further without cost to themselves join with the Corporation in any proceedings that may be necessary to obtain vacant possession as aforesaid The Corporation on obtaining such vacant possession will forthwith at their own cost remove and pull down the front boundary rails walls and other erections and the front lodge of the Hospital Trustees on the land coloured green as aforesaid and will carry out the work so as to ensure the safety of the public and the Hospital Trustees shall give access to their

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Birmingham, and General Hospital Act, 1925.

A.D. 1925. — remaining property to enable the Corporation to execute the work and will permit the Corporation subject to the reasonable approval of the architect of the Hospital Trustees to demolish if necessary any parts of the adjoining buildings that may be dangerous And the Corporation will re-erect to the reasonable satisfaction of the Hospital Trustees the said front boundary rails walls and the front lodge aforesaid upon the land retained by the Hospital Trustees and will further if desired by them and to their reasonable satisfaction erect a dwarf wall and suitable iron fence between the points marked " A " and " B " on the plan hereto annexed.

7. The Corporation will provide in the consecrated part to be selected by them of one of their cemeteries at the expense of the Hospital Trustees and with the reasonable approval of the Bishop of Birmingham space for the reinterment of the human remains removed from the portion of the chapelyard to be conveyed to the Hospital Trustees by the Church Trustees.

8. This agreement is subject to confirmation by Parliament and to such alterations as may be made by Parliament therein but in the event of either House of Parliament making any material alteration in this agreement any of the parties hereto on giving notice in writing to the other parties or their respective solicitors before the said Bill is read a third time in the Second House may withdraw from the same.

9. In the event of the said Bill failing to become law during the session of 1925 or the Hospital Trustees for any other cause failing to acquire the said church and the part of the chapelyard edged pink as aforesaid this agreement will become absolutely void and Weaman Row shall not be closed.

As witness whereof the Corporation has hereunto affixed its common seal and the other parties to these presents have hereunto set their hands and seals the day and the year first above written.

The common seal of the lord mayor aldermen and
citizens of the city of Birmingham was hereunto
affixed in the presence of

F. H. C. WILTSHIRE

Town Clerk

Seal.

Signed sealed and delivered
by the above named Arthur
Neville Chamberlain in the
presence of

M. E. HOLT

46 Mayfield Road

Moseley

Secretary

ARTHUR NEVILLE
CHAMBERLAIN

L.S.

[15 & 16 GEO. 5.] *Saint Mary's Church,* [Ch. xli.]
Birmingham, and General Hospital Act, 1925.

A.D. 1925.

Signed sealed and delivered
 by the above named
 Edmund Phipson Beale in
 the presence of
 C. H. BRINDLEY
 Clerk to Messrs. Beale & Co.
 Solicitors Birmingham

EDMUND P. BEALE

L.S.

Signed sealed and delivered
 by the above named John
 Henry Lloyd in the pres-
 ence of
 A. H. LEANEY
 The General Hospital
 Birmingham
 House Governor

JOHN HY. LLOYD

L.S.

Signed sealed and delivered
 by the above named Ernest
 William Lord Bishop of
 Birmingham in the pres-
 ence of
 J. F. CROWDER
 articled clerk to Messrs.
 Smythe Etches & Co.
 Solicitors Birmingham

E. W. BIRMINGHAM

L.S.

Signed sealed and delivered
 by the above named
 Charles Ernest Hopton in
 the presence of
 J. F. CROWDER

CHAS. E. HOPTON

L.S.

Signed sealed and delivered
 by the above named Walter
 Frederick William Hunter
 in the presence of
 J. F. CROWDER

W. F. W. HUNTER

L.S.

Signed sealed and delivered
 by the above named Sir
 Christopher Robert
 Lighton in the presence of
 JOHN MALCOLM
 New Club
 North Berwick
 Club steward

C. ROBERT
 LIGHTON

L.S.

[Ch. xli.] *Saint Mary's Church, [15 & 16 GEO. 5.]*
Birmingham, and General Hospital, Act 1925.

A.D. 1925. Signed sealed and delivered
by the above named James
Hamilton Houldsworth in
the presence of

FRANK H. HARGROVE
8 Iddesleigh House
Caxton Street
Westminster
Articled clerk

J. HAMILTON
HOULDSWORTH

L.S.

Signed sealed and delivered
by the above named Joseph
Wood Richards Adams in
the presence of

HENRY WILLIAM
THOROGOOD
15 De Vere Gardens
W.8

J. W. RICHARDS
ADAMS

L.S.

Butler to Col. J.W.R. Adams

Signed sealed and delivered
by the above named George
Alexander Bryson in the
presence of

J. F. CROWDER

GEO. A. BRYSON

L.S.

Signed sealed and delivered
by the above named Henry
Joseph Guest in the
presence of

J. F. CROWDER

HENRY J. GUEST

L.S.

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